UPPER MATTAPONI TRIBE

RESOLUTION NO. 2026-14

LIMITED WAIVER OF SOVEREIGN IMMUNITY TO [redacted]

A Resolution to authorize financing with [redacted] and provide a limited waiver of sovereign immunity for purposes of such financing.

At a duly called General Meeting of the Upper Mattaponi Tribe Council held this 25th day of April 2026, the following Resolution and Law were adopted.

WHEREAS, the Upper Mattaponi Tribe (the "Tribe") is an Indian Tribe that has existed from time immemorial and is federally recognized on a government-to-government basis by the United States of America; and,

WHEREAS, the Constitution of the Upper Mattaponi Tribe (the "Constitution") was adopted to ensure the Tribe's well-being by fostering self-sufficiency, promoting sustainable development, and securing the economic future of the Tribe and its citizens; and,

WHEREAS, Article VII, Section 4(a) of the Constitution vests legislative power in the Council of the Upper Mattaponi Tribe (the "Council") to enact laws and budget resolutions that support these interests; and,

WHEREAS, the Tribe is planning for certain construction projects and has appropriated funds and is in the process of negotiating a loan with [redacted] as lender for that purpose, Budget Resolution No. 2026-01; and

WHEREAS, as a condition of the aforesaid loan, [redacted] is seeking a limited waiver of the Tribe's sovereign immunity from suit; and

WHEREAS, Article XIII, Section 1 of the Constitution provides that "[o]nly the Council and Chief may authorize a waiver of Sovereign Immunity by law enacted in accordance with the Legislative Process. Any authorization by the Council to waive Sovereign Immunity shall be specific, for a limited scope and duration, and in writing."

NOW THEREFORE BE IT RESOLVED that the Chief of the Upper Mattaponi Tribe, or their designee, is hereby authorized to negotiate, execute and deliver any and all agreements, instruments, certifications, and documents necessary or convenient to obtain financing from [redacted]

BE IT FURTHER RESOLVED that the Tribe hereby waives the sovereign immunity of the Tribe, solely with respect to: (i) the proposed non-revolving cash-secured line of credit in an

amount not to exceed [redacted] from [redacted] to the Tribe and all documents and transactions in connection therewith (the "Secured Line of Credit"); and (ii) the proposed non-revolving unsecured line of credit in an amount not to exceed [redacted] from [redacted] to the Tribe and all documents and transactions in connection therewith (the "Unsecured Line of Credit"; the Secured Line of Credit and the Unsecured Line of Credit are, collectively, the "Loan") including, but not limited to, the Tribe's promissory note in the amount of the Secured Line of Credit, the Tribe's promissory note in the amount of the Unsecured Line of Credit and the Tribe's pledge of a [redacted] to secure the Secured Line of Credit (collectively, the "Loan Transactions").

BE IT FURTHER RESOLVED that the Tribe agrees that all documents evidencing the Loan Transactions shall be governed by the laws of the Commonwealth of Virginia, and consents to the jurisdiction of the courts of any city or county in the Commonwealth of Virginia and the federal courts of the Eastern District of Virginia.

BE IT FURTHER RESOLVED that the Tribe authorizes the Chief of the Tribe, to act as the authorized representative of the Tribal Government and the Tribe relating to the Loan Transactions, including granting them authority to sign any and all documents relating to the Loan Transactions and the waiver of sovereign immunity for the Tribe on behalf of the Tribe. This authority is granted to the Chief or their designee solely for the Loan Transactions and all documents executed or to be executed in connection therewith.

CERTIFICATION

The foregoing Resolution was duly voted upon by the Council on the 25th day of April 2026, at a General Meeting with a vote of 7 in favor and 0 opposed, 0 abstaining, and 0 absent, pursuant to the authority vested in the Council by the Constitution of the Upper Mattaponi Tribe.

Secretary of the Council or Designee

UPPER MATTAPONI TRIBE COUNCIL RESOLUTION NO. 2026-14

SPONSOR: Councilperson O. Adams

COUNCILMEMBERS	YES	NO	ABSTAIN	ABSENT
Ken Adams	✓			
Owen Adams	✓			
Beth Gondos	✓			
Wilma Hicks	✓			
Sonny Knighton	✓			
Connie Lovelace	✓			
Dennis Smith	✓			

ASSISTANT CHIEF (Authorized to break tie votes only): _____

DELIVERY OF THE RESOLUTION AND LAW TO THE CHIEF

Resolution No. 2026-14 was presented to the Chief of the Upper Mattaponi Tribe on the 27th day of April, 2026, pursuant to Article VII, Section 5(f) of the Constitution of the Upper Mattaponi Tribe and will become effective after signature by the Chief or veto override by the Council.

Wilma Hicks
Secretary of the Council or Designee

CHIEF'S ACTIONS:

☑ Approved

☐ Veto – Returned to Council with Explanation

_____

_____

_____

_____

_____

On this 27th day of April, 2026.

W. Frank Adams
Chief

Presented to Chief and Council on the _____ day of _____, 2026.

COUNCIL'S ACTIONS:

Override of the Chief's Veto –

☐ Yes

☐ No

COUNCILMEMBERS	YES	NO	ABSTAIN	ABSENT
Ken Adams				
Owen Adams				
Beth Gondos				
Wilma Hicks				
Sonny Knighton				
Connie Lovelace				
Dennis Smith				

CERTIFICATION

The foregoing Resolution was duly voted upon by the Council on _____ day of _____, 2026, at a General Meeting with a vote of _____ in favor and _____ opposed, _____ abstaining, and _____ absent, pursuant to the authority vested in the Council by the Constitution of the Upper Mattaponi Tribe.

_____

Secretary of the Council or Designee